



ORIGINAL

BEFORE THE
FEDERAL MARITIME COMMISSION

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FEDERAL MARITIME COMMISSION

Docket No. 17- 03

ANTONIO EGBERTO CARNEIRO LIMA,

Complainant,

vs.

**FASTWAY MOVING AND STORAGE, INC., d/b/a
DREAM CARGO, d/b/a FASTWAY, d/b/a
FASTWAY MOVING; FASTWAY MOVING AND
SERVICES CORP.; FASTWAY MOVING AND
TRADING CORP.; ABREU LOPES
TRANSPORTES LTDA; and ABREU LOGISTICS
USA, LLC d/b/a ABREU LOGISTICS & CARGO,**

Respondents.

VERIFIED COMPLAINT

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DREAM CARGO, d/b/a FASTWAY, d/b/a FASTWAY
MOVING; FASTWAY MOVING AND SERVICES
CORP.; FASTWAY MOVING AND TRADING
CORP.; ABREU LOPES TRANSPORTES LTDA; and
ABREU LOGISTICS USA, LLC d/b/a ABREU
LOGISTICS & CARGO,**

Respondents.

VERIFIED COMPLAINT

COMPLAINANT.

1. Complainant Antonio Egberto Carneiro Lima (“**Complainant**” or “**Lima**”) resides at Rua Jose de Alencar #3576, Bairro Olario, Porto Velho, Estate Rondonia, BRAZIL.
2. Lima sought to obtain transportation of approximately 33 cubic meters of household goods by water between the United States and Brazil through Respondents’ services.
3. Lima is a “shipper” in relation to the Respondents as such term is defined in 46 U.S.C. § 40102(22).

RESPONDENTS.

4. Respondent Fastway Moving and Storage, Inc., d/b/a Dream Cargo, d/b/a Fastway, d/b/a Fastway Moving (“**Fastway Storage**”) is an entity that is incorporated in

Massachusetts and which, at all times relative to this complaint, had its primary place of business at 701 Penhorn Avenue, Unit 1, Secaucus, NJ 07094, USA and which has a registered agent named Robson Lopes at 6K Gill Street, Woburn, MA 01801. Fastway Storage also operates out of a Florida location at 1425 SW 6th Court, Suite 1425, Pompano Beach, FL 33069, USA, and has a second registered agent named Robson M. Lopes at 1425 SW 6th Court, Suite 1425, Pompano Beach, FL 33069, USA.

5. Respondent Fastway Moving and Services Corp. ("**Fastway Moving**") is an entity that is incorporated in New Jersey and which, at all times relative to this complaint, had its primary place of business at 701 Penhorn Avenue, Unit 1, Secaucus, NJ 07094, USA and which has a registered agent named Robson Lopes at 701 Penhorn Avenue, Unit 1, Secaucus, NJ 07094, USA. Fastway Moving also operates out of a Florida location at 1405 SW 6th Court, Suite 1425, Pompano Beach, FL 33069, USA, and has a second registered agent named Robson M. Lopes at 1405 SW 6th Court, Suite 1425, Pompano Beach, FL 33069, USA.

6. Respondent Fastway Moving and Trading Corp. ("**Fastway Trading**") is an entity that is/was incorporated in Florida, with its primary place of business at 4100 N. Powerline Rd., Suite W3, Pompano Beach, FL 33073, USA, with a registered agent named Victor S. Passos, 5 Palisades Road, Old Bridge, NJ 08857, USA.

7. Respondent Abreu Lopes Transportes LTDA. ("**Abreu Transport**") is an entity with its primary place of business at Rue Deocleciana 86, Sao Paulo, SP, CEP 01106-030, Brazil.

8. Respondent Abreu Logistics USA, LLC d/b/a Abreu Logistics & Cargo ("**Abreu Logistics**") is a Florida entity with its primary place of business at 1425 SW 6th Court, Suite 1425, Pompano Beach, FL 33069 USA which has a registered agent of Robson M. Lopes, 1425 SW 6th Court, Pompano Beach, FL 33069 USA.

9. Upon information and belief, Fastway Storage, Fastway Moving, and Fastway Trading Corp (collectively, the "**Fastway Entities**") operate interchangeably as one business and are inexorably intertwined.

10. Upon information and belief, Abreu Transport and Abreu Logistics (collectively, the “**Abreu Entities**”) operate interchangeably as one business and are inexorably intertwined.

11. Upon information and belief, the Fastway Entities and the Abreu Entities operate interchangeably as one business and are inexorably intertwined.

12. Upon information and belief, the Fastway Entities and the Abreu Entities also share an office location at 1425 SW 6th Court, Pompano Beach, FL 33069.

13. At all times relevant herein, the Fastway Entities offered and provided services to Lima in the capacity of a Non-Vessel Operating Common Carrier (“**NVOCC**”) and/or as an Ocean Freight Forwarder (“**OFF**”), as those terms are defined in 46 U.S.C. § 40102.

14. At all times relevant herein, the Abreu Entities provided services to Lima in the capacity of an NVOCC and/or as an OFF, as those terms are defined in 46 U.S.C. § 40102.

15. Upon information and belief, at all times relevant hereto, Fastway Moving Inc. was licensed by the Federal Marine Commission (“**FMC**”) as a non-vessel operating common carrier under FMC License No. 020670. See <http://fastwaymoving.com/licenses-and-affiliations/>. See also Web Archive file from July 1, 2015, in which Fastway Moving Inc. describes itself as “a family-run business that specializes in international-moving services, licensed by the Federal Maritime Commission as a Non-Vessel Operating Common Carrier (NVOCC).” See <https://web.archive.org/web/20150701044044/http://fastwaymoving.com/movers/company>.

16. The Fastway Entities maintain a website at www.fastwaymoving.com where they state that they “specialize[s] in providing our clients with a stress-free moving experience.”

JURISDICTION.

17. The FMC has subject matter jurisdiction over the claims in this action as this matter relates to contracts for carriage of goods by sea from ports of the United States and thus comes under the Carriage of Goods by Sea Act (“**COGSA**”), 46 U.S.C.S. § 30701, and the Shipping of Act of 1984 (the “**Shipping Act**”), 46 U.S.C. § 40101 *et seq.*

18. The Fastway Entities and the Abreu Entities are obligated to comply with all applicable rules and regulations of the FMC, including the Shipping Act and COGSA.

19. Lima files this Verified Complaint (the “**Complaint**”) pursuant to 46 U.S.C. 41301 for injuries caused to Lima by Respondents as a result of Respondents’ violation of COGSA, the Shipping Act, and the FMC’s regulations pursuant to COGSA and the Shipping Act at 46 C.F.R. Part 515. As more particularly alleged below, Respondents:

a. failed to establish or observe just and reasonable practices related to the receiving, handling, or delivering of property in violation of 46 U.S.C. 41102(c);

b. allowed a person to obtain transportation for property at less than the rates or charges established by the carrier in its tariff or service contract by means of false billing, false classification, false weighting , false measurement, or other unjust or unfair device or means in violation of 46 U.S.C. § 41104(1);

c. provided a service in the liner trade that is not in accordance with the rates, charges, classifications, rules, and practices contained in a tariff published or a service contract entered into under chapter 405 of [Title 46], in violation of 46 U.S.C. § 41104(2)(A); and

d. knowingly and willfully accepted cargo from or transported cargo for the account of an ocean transportation intermediary that does not have a tariff as required by section 40501 of Title 46 and a bond, insurance, or other surety as required by section 40902 of Title 46, in violation of 46 U.S.C. § 41104(11).

20. As a result of said violations, Lima has been injured and seeks reparations, interest, and attorneys’ fees, plus such other sum as the FMC may determine to be proper.

FACTUAL STATEMENT

21. On or about July 17, 2014, Lima contacted the Fastway Entities by telephone to discuss whether the Fastway Entities could undertake transportation of Lima’s household goods as part of Lima’s relocation from the United States to Brazil.

22. Lima had learned about the Fastway Entities through an internet search. The Fastway Entities advertised their services of transporting household goods from the United States to Brazil.

23. Lima originally spoke to Igor Passos ("**Mr. Passos**"). Mr Passos advised Lima that he was a "sales specialist" for the Fastway Entities.

24. Shortly thereafter, Mr. Passos visited Lima at Lima's home in North Plainfield, New Jersey to evaluate the quantity and nature of household goods that Lima planned to ship in order to provide a quotation for the price of the services.

25. A few days later, Mr. Passos telephoned Lima to advise Lima that he had calculated the different available shipping options and costs.

26. Rather than discuss the transaction on the phone, Lima went to the Fastway Entities' office at 701 Penhorn Avenue, Unit 1, Secaucus, New Jersey, to discuss the different options with Mr. Passos.

27. Lima chose the "complete" service, pursuant to which Mr. Passos advised that the Fastway Entities would be responsible for packing, shipping, and all legal procedures at the port in Brazil, including Brazilian IRS, legal fees, container expenses, storage at the port, and all shipping charges.

28. Mr. Passos did not indicate which of the Fastway Entities would be responsible for which services.

29. Mr. Passos did not advise Lima that the Abreu Entities would be involved in the transaction at all.

30. Mr. Passos guaranteed, on behalf of the Fastway Entities, that Lima's belongings would arrive in Brazil no later than 60 days later, without any hassle.

31. Lima also spoke to Ms. Ester Chagas in the documentation department ("**Ms. Chagas**"), who also guaranteed, on behalf of the Fastway Entities, that Lima's belongings would arrive in Brazil by the 60th day without any trouble.

32. Based in large part on Mr. Passos' and Ms. Chagas' guarantees of handling and hassle-free delivery of the entire shipment, including the processing of his belongings through the Multirio terminal located in Rio de Janeiro, Brazil, Lima agreed to the most expensive "complete" service.

33. On August 6, 2014, Lima paid \$17,320.00 to the Fastway Entities. Lima also provided all the paperwork required for custom clearance in Brazil.

34. Mr. Passos confirmed that everything was in order.

35. Mr. Passos informed Lima that his belongings would be shipped on or about July 28, 2014, and were due to arrive at the port of Rio De Janeiro, Brazil on or about September 14, 2014, for expected delivery to Lima's home in Porto Velho, Brazil, on or about October 10, 2014.

36. On July 14 and July 15, 2014, the Fastway Entities sent workers (the "Fastway Workers") to Lima's home in North Plainfield, NJ with a truck to pack up all of his belongings. As the Fastway Workers were packing Lima's belongings for shipment, they prepared a written inventory of all of the articles that they were packing, a true and correct copy of which is attached hereto as Exhibit A ("Household Goods Descriptive Inventory"). The Household Goods Descriptive Inventory shows that a total of 130 boxes were packed at Lima's home in North Plainfield that day.

37. Once the Fastway Workers packed up Lima's belongings and loaded them on their truck, the Fastway Entities were in total control of Lima's belongings and Lima's shipment. Lima did not have any access to his belongings from that point on.

38. Lima flew to Brazil on August 20, 2014.

39. When Lima's belongings did not arrive as scheduled, he telephoned the Fastway Entities to find out when they would be delivered.

40. The representative from the Fastway Entities told Lima that everything was fine, but that there was a short delay at the port that he did not have to worry about.

41. Week after week went by, and still Lima's belongings were not delivered to him.

42. Every time Lima called the Fastway Entities to inquire about the delivery of his shipment, he was informed that the delay was normal in an international shipment and that the goods were fine and would be delivered soon.

43. In early 2015, having still not received his belongings, Lima started doing research on his own to see if he could find out why his goods were not delivered.

44. On or about the first week of March 2015 Lima called the Multirio Port in Rio de Janeiro and discovered that his goods had been seized by the IRS.

45. Lima immediately called the IRS office at the Multirio port in Rio de Janeiro and spoke to Mrs. Ana Lucia ("**Mrs. Lucia**"), the chief of the IRS Division at that location.

46. Mrs. Lucia advised Lima that his goods had arrived at the Multirio port in Rio de Janeiro on September 1, 2014, but that the shipment had been immediately blocked by the IRS and had been held by the IRS since that time.

47. Mrs. Lucia said that the IRS had informed the Fastway Entities and the Abreu Entities that the shipment had been blocked by the IRS.

48. At no time did anyone from the Fastway Entities or the Abreu Entities advise Lima that there was a problem with clearing the goods into Brazil or any kind of problem with the IRS.

49. At no time did anyone from the Fastway Entities or the Abreu Entities advise Lima that there was any trouble whatsoever.

50. Mrs. Lucia stated that the IRS blocked the shipment because certain illegal items were found in Lima's shipment.

51. Lima did not have any illegal items in his belongings when the Fastway Workers packed his goods and took possession of them at his home in North Plainfield, NJ.

52. Moreover, Mrs. Lucia stated that there were items in the shipment that were not included on the declared list of items.

53. According to Mrs. Lucia, the illegal items consisted of 2,393 units of data tapes and 450 units of 800 GB data cartridges.

54. The data tapes and data cartridges were not part of Lima's original shipment, and did not belong to him. Lima knew nothing about these data tapes and data cartridges.

55. Mrs. Lucia advised Lima that the Fastway Entities and the Abreu Entities were aware of the fact that Lima's shipment was confiscated because of the illegal items.

56. Mrs. Lucia also advised Lima that neither the Fastway Entities nor the Abreu Entities had taken any action to retrieve the goods in the six months since the goods had been seized, nor had they attempted to explain the existence of the illegal items.

57. Mrs. Lucia further explained that because neither the Fastway Entities nor the Abreu Entities had taken any action to retrieve the goods, the container (and Lima's shipment within the container) was considered abandoned.

58. Mrs. Lucia explained that if another 30 days had gone by without anyone retrieving the goods, the container would have been considered permanently abandoned and all of Lima's belongings would have been auctioned off.

59. Lima finally realized that he could no longer trust the Fastway Entities to resolve this situation, and he was forced to fly to Rio de Janeiro to personally retrieve his belongings from the IRS.

60. On his first trip to Rio de Janeiro in March 2015, Lima had to present all the documents to the IRS to reopen the case just to prevent his belongings from being auctioned off. Lima had to prove that his shipment was simply part of a household move, that the goods had been packed by the Fastway Entities and had not been in his hands since the initial packing, and that the illegal items were not part of his belongings or his shipment.

61. Lima also had to schedule an appointment with the IRS to go to the port to physically open the container and review the items.

62. When Lima and the IRS agent went to the port and opened the container, however, they discovered that there were an additional 61 boxes in the container that did not belong to him – in addition to the undeclared tapes and tape cartridges!

63. Although Lima had only shipped 130 boxes, as clearly shown on the written Household Goods Descriptive Inventory prepared by the Fastway Workers, the container had a total of 191 boxes inside.

64. Lima advised the IRS that the additional 61 boxes were not his, and further advised that he had no idea how or why they were included with his belongings.

65. The IRS informed Lima that he was going to be charged in criminal court for crimes against the IRS and for failure to pay importation taxes on these additional 61 boxes.

66. Because of the discovery of these additional items, Lima was not able to secure the release of his belongings on his first trip to Rio de Janeiro.

67. Because the Fastway Entities and/or the Abreu Entities had control of Lima's shipment from the time that the Fastway Entities picked up the 130 boxes of Lima's belongings at his home, either the Fastway Entities and/or the Abreu Entities knew or should have known about these additional, illegal items (both the tapes and the additional 61 boxes) were illegally added to Lima's shipment.

68. On Lima's second trip to Rio de Janeiro in March 2015, Lima was able to clear everything up with the IRS and convince the IRS to release his shipment.

69. However, although the IRS released its hold on the shipment, the Port would not release the shipment because neither the Fastway Entities nor the Abreu Entities had paid the Port Fees.

70. In addition, Lima still had to arrange for shipment of the goods from the Port of Rio de Janeiro to his home in Porto Velho, Brazil, a distance of approximately 2,100 miles.

71. As Lima had already paid the Fastway Entities for the shipment of his goods from the port to his home, Lima contacted the Fastway Entities to see if they would arrange for this final leg of the shipment. The representative at the Fastway Entities advised Lima to contact a local company called Dfelix Assessoria em Comercio Exterior ("**Dfelix**") to make arrangements for the shipment.

72. When Lima called Dfelix, he spoke to the owner, Deoclecio Felix Junior (“**Mr. Felix**”). Mr. Felix asked Lima for copies of the release paperwork and confirmed that Dfelix would pick up the container and have it delivered to Lima’s home.

73. Lima sent Mr. Felix the requested paperwork.

74. After approximately a month, Lima still had not received his shipment.

75. Lima began calling Dfelix nearly every day to find out when the goods would be delivered. Mr. Felix finally told Lima that the Fastway Entities had not paid Dfelix, and so Dfelix did not have the money to pay the Port fees, which was why Dfelix had not yet picked up the shipment.

76. In the meantime, storage charges were adding up for every day that Lima’s goods were continuing to be held at the Port.

77. Lima again realized that he would never get his belongings if he relied on the Fastway Entities or the Abreu Entities, so he made a third trip to Rio de Janeiro in April 2015 to arrange for pickup and delivery himself.

78. When he arrived in Rio for the third time, he discovered that the Fastway Entities had also failed to pay the container company for the importation fee or for the rental of the container itself. Because of that, the container company had also placed a hold on the container and the goods, and so payment of the Port fees was not going to be sufficient to retrieve the shipment.

79. Lima was again told that he would not be able to retrieve his belongings without paying both the Port Fees and the Container fees.

80. Lima explained the situation to the container company, and tried to convince them to release his belongings out of the container.

81. At first, the representative from the container company would not even speak to Lima because the name listed on the master bill of lading was one of the Fastway Entities, and according to the representative from the container company, the Fastway Entities owed the container company money. The representative from the container company explained that the

container and its belongings was their only insurance that they would get payment from the Fastway Entities.

82. Luckily, the IRS officials stepped in and convinced the container company to release Lima's personal belongings.

83. Lima paid all the Port fees and the storage fees, and then paid another shipping company to pick up his belongings at the Port and ship them to his home in Porto Velho.

84. Lima also paid to have moving men unload the truck once the belongings arrived at his home.

85. These payments were all double payments, since Lima had already paid in full for all of these services when he hired the Fastway Entities. However, Lima was forced to pay them again or he would not have been able to retrieve his belongings.

86. Lima was forced to make three trips to Rio de Janeiro before he was finally able to straighten out the problem and arrange to have his goods released from the IRS and shipped to his home in Porto Velho.

87. Lima does not know the arrangement between the Fastway Entities and the Abreu Entities and does not know which of those Entities were responsible for which parts of the herein-mentioned wrongdoing.

VIOLATIONS OF THE SHIPPING ACT

88. As set forth above, the Fastway Entities and the Abreu Entities have violated and continues to violated the Shipping Act by:

- a. failing to establish or observe just and reasonable practices related to the receiving, handling, or delivering of property in violation of 46 U.S.C. 41102(c);
- b. allowing a person or persons to obtain transportation for property at less than the rates or charges established by the carrier in its tariff or service contract by means of false billing, false classification, false

weighting , false measurement, or other unjust or unfair device or means in violation of 46 U.S.C. § 41104(1);

c. providing a service in the liner trade that is not in accordance with the rates, charges, classifications, rules, and practices contained in a tariff published or a service contract entered into under chapter 405 of [Title 46], in violation of 46 U.S.C. § 41104(2)(A);

d. knowingly and willfully accepting cargo from and transporting cargo for the account of an ocean transportation intermediary that does not have a tariff as required by section 40501 of Title 46 and a bond, insurance, or other surety as required by section 40902 of Title 46, in violation of 46 U.S.C. § 41104(11); and

e. any other charge of this type or of similar nature that is found to be unlawful under the circumstances.

INJURY TO COMPLAINANT

89. As a result of Respondents' aforementioned violations, which are fully incorporated here as if set forth again in full, the Complainant has sustained and continues to sustain injuries and damages in excess of \$129,872.22.

REQUEST FOR RELIEF

WHEREFORE, Complainant prays that Respondents be required to answer the charges herein; that after due hearing, an order be made commanding said Respondents to pay to Complainant by way of reparations for the unlawful conduct hereinabove described the sums described herein, with interest and attorney's fees, plus such other sum as the Commission may determine to be proper as an award of reparation; and that such other and further order or orders be made as the Commission determines to be proper under the circumstances.

STATEMENT REGARDING ADR PROCEDURES

The parties have not engaged in mediation or consulted the FMC's Office of Consumer Affairs and Dispute Resolution. Alternative dispute resolution procedures were not used prior to filing this Complaint. Complainant has not consulted with the Commission Dispute Resolution Specialist about utilizing alternative dispute resolution.

REQUEST FOR HEARING

Complainant requests an oral hearing on this matter, and further requests that the hearing be held in New York.

DESIGNATED TRIAL ATTORNEY PURSUANT TO SECTION 502.23

Complainant hereby designates Suzanne Iazzetta, Esq., of counsel to Karina Pia Lucid, Esq., LLC, as designated trial counsel. Suzanne Iazzetta, Esq. is an attorney admitted to practice and in good standing before the courts of the States of New York, New Jersey, and North Carolina, and before the Federal courts of the Southern District of New York the District of New Jersey, the Eastern District of North Carolina, and the Western District of North Carolina.



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suzanneiazzetta@gmail.com

Dated: March 20, 2017

VERIFICATION pursuant to 502.6

I, Antonio Egberto Carneiro Lima, am the Complainant in the action herein. I have read the attached COMPLAINT and know the contents thereof, and I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct. My belief as to those matters therein not stated upon knowledge (i.e., stated upon information and belief), is based upon facts, records, and other pertinent information contained in my personal files.

DATED: 22 March 03 2017

LOCATION: Porto Velho, BRAZIL.

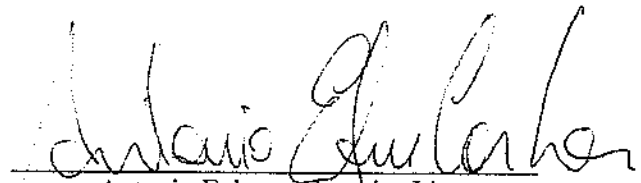

Antonio Egberto Carneiro Lima

Exhibit A

Household Goods Descriptive Inventory

HOUSEHOLD GOODS DESCRIPTIVE INVENTORY

1.888.590.3278

CONTRACTOR OR CARRIER

AGENT

PAGE NO.	NO. OF PAGES
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02

NO. OF PAGES

CARRIER'S REFERENCE NO.

CONTRACT OR GBL NO.	
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GOVT. SERVICE ORDER NO.

VAN NUMBER

OWNER'S GRADE OR RATING AND NAME

ORIGIN LOADING ADDRESS

DESTINATION

DESCRIPTIVE SYMBOLS

BW - BLACK & WHITE TV
 C - COLOR TV
 CP - CARRIER PACKED
 FBO - PACKED BY OWNER
 CD - CARRIER DISASSEMBLED

DBO - DISASSEMBLED BY OWNER
PB - PROFESSIONAL BOOKS
PE - PROFESSIONAL EQUIPMENT
PP - PROFESSIONAL PAPERS
MCU - MECHANICAL CONDITIONS
UNKNOWN

DE - BENT
BR - BROKEN
BU - BURNED
CH - CHIPPED
CU - CONTENTS &
CONDITION UNKNOWN

EXCEPTION SYMBOLS

D - DENTED
F - FADED
G - GOUGED
L - LOOSE
M - MARRED
MI - MILDEW
MO - MOTHEATEN
P - PEELING
R - RUBBED
RU - RUSTED
SC - SCRATCHED

SH - SHORT
SO - SOILED
ST - STAINED
T - TORN
W - BADLY WORN
Z - CRACKED

LOCATION SYMBOLS

1 ARM	8 RIGHT	15 DRAWER
2 BOTTOM	9 SIDE	16 SEAT
3 CORNER	10 TOP	17 DOOR
4 FRONT	11 VENER	18 SHELF
5 LEFT	12 EDGE	19 HARDWARE
6 LEGS	13 CENTER	
7 REAR	14 INSIDE	

NOTE: THE OMISSION OF THESE SYMBOLS INDICATES GOOD CONDITION EXCEPT FOR NORMAL WEAR.

ITEM NO	CR REF	ARTICLES	PRICE
29	LC	luzes brilha de plástico	
30	LC	photos - copos - pincelão.	
31	DISH	plato para guarda roupas suco - roupas.	
32	GMB	Sofa de canto 03 lugares.	500,00
33	GMB	Sofa de canto 02 lugares.	600,00
34	GMB	parte do sofa de canto.	
35	LV	luzes. Vlos de decoração	
36	GMB	trilho para cantina	
37	GMB	topo médio	
38	GMB	decoração	
39	GMB	mesa de madeira	
40	DISH	luzes, trilhos de linha - pincelão - pincela - computador desktop com iluminação	
41	GMB	vidro da mesa de computador	
42	GMB	Mesa de computador	
43	LC	luzes - copos - pratos.	
44	GMB	mesa de vidro para jantar.	
45	DISH	pis da mesa de vidro - papel toalha - papel higiênico	
46	GMB	suporte para guarda copos - parte de linha do vidro da mesa.	
47	GMB	movel para televisão	
48	GMB	edifício de escritório	
49	GMB	luminária de vidro	
50	GMB	parte da luminária de vidro.	
51	GMB	planta artificial	
52	GMB	vidro do movei da TV.	
53	DISH	Guarda roupas, televisão <u>visio 14 polegadas LED usado</u> , box da luminária de canto.	200,00
54	DISH	criado mudo - edículas - almofadas	
55	DISH	criado mudo, travessões.	
56	GMB	televisão <u>visio 30 polegadas LED usada</u> *	2.000,00
57	DISH	almofadas, luminária de edícula <u>televisão panio 32 polegadas LED usada</u>	
58	GMB	edícula da cama quem.	200,00

"We have checked all the items listed and numbered 1 to _____ inclusive and acknowledge that this is a true and complete list of the goods tendered and of the state of the goods received."



HOUSEHOLD GOODS DESCRIPTIVE INVENTORY

PAGE NO.	NO. OF PAGES
03	
CARRIER'S REFERENCE NO.	
CONTRACT OR GBL. NO.	
GOVT. SERVICE ORDER NO.	
VAN NUMBER	

1.888.590.3278

CONTRACTOR OR CARRIER

2415514

AGENT

GIGUAN QUINN

OWNER'S GRADE OR RATING AND NAME

ANTONIO GABRIEL VARNIERE TEIXEIRA

ORIGIN LOADING ADDRESS

190 WESTERVELT AV

CITY

PLAINFIELD

STATE

NJ

DESTINATION

RUA UBUNA 3469 PORTO VELHO - RO - Brazil

DESCRIPTIVE SYMBOLS

BW - BLACK & WHITE TV
C - COLOR TV
CP - CARRIER PACKED
PSO - PACKED BY OWNER
CD - CARRIER DISASSEMBLEDDRO - DISASSEMBLED BY OWNER
PB - PROFESSIONAL BOOKS
PE - PROFESSIONAL EQUIPMENT
PP - PROFESSIONAL PAPERS
MCU - MECHANICAL CONDITIONS
UNKNOWNBE - BENT
BR - BROKEN
BU - BURNED
CH - CHIPPED
CU - CONTENTS &
CONDITION UNKNOWN

EXCEPTION SYMBOLS

D - DENTED
F - FADED
G - GAUGED
L - LOOSE
M - MARREDMI - MILDEW
MD - MOTH EATEN
P - PEELING
R - RUBBED
RU - RUSTED
SC - SCRATCHEDSH - SHORT
SO - SOILED
ST - STAINED
T - TORN
W - BADLY WORN
Z - CRACKED

LOCATION SYMBOLS

1. ARM 6. RIGHT 15. DRAWER
2. BOTTOM 9. SIDE 16. SEAT
3. CORNER 10. TOP 17. DOOR
4. FRONT 11. VENEER 18. SHELF
5. LEFT 12. EDGE 19. HARDWARE
8. LEGS 13. CENTER
7. REAR 14. INSIDE

NOTE: THE OMISSION OF THESE SYMBOLS INDICATES GOOD CONDITION EXCEPT FOR NORMAL WEAR.

ITEM NO.	CR REF.	ARTICLES	PRICE
09	DISH	coloreds - soupers.	
60	DISH	coloreds	
61	DISH	coloreds.	
62	DISH	coloreds de vidro	
63	GMB	coloreds de vidro quem.	
64	GMB	coloreds quem.	
65	DISH	coloreds. colados. soupers.	
66	DISH	coloreds. colados. DVD semi usado.	
67	DISH	coloreds. colados	
68	GMB	coloreds de vidro quem.	
69	GMB	coloreds de vidro quem.	
70	GMB	coloreds de vidro quem.	
71	GMB	coloreds de vidro quem.	
72	GMB	coloreds de vidro quem.	
73	GMB	coloreds de vidro quem.	
74	GMB	coloreds de vidro quem.	
75	DISH	coloreds - soupers. colados.	
76	GMB	coloreds quem.	
77	GMB	coloreds de vidro quem.	
78	GMB	coloreds de vidro quem.	
79	GMB	coloreds de vidro quem.	
80	GMB	coloreds de vidro quem.	
81	GMB	coloreds de vidro quem.	
82	LC	coloreds	
83	LC	coloreds	
84	LC	coloreds	
85	LC	coloreds	
86	LC	coloreds	
87	LC	coloreds	
88	LC	coloreds	
ITEM NO.	REMARKS/EXCEPTIONS		

"We have checked all the items listed and numbered 1 to _____ inclusive and acknowledge that this is a true and complete list of the goods tendered and of the state of the goods received."



HOUSEHOLD GOODS DESCRIPTIVE INVENTORY

PAGE NO.	NO. OF PAGES
04	
CARRIER'S REFERENCE NO.	
CONTRACT OR GBL. NO.	
GOVT. SERVICE ORDER NO.	
VAN NUMBER	

1.888.590.3278

CONTRACTOR OR CARRIER

2415514

AGENT

GILVANA OLIVEIRA

OWNER'S GRADE OR RATING AND NAME

ANTONIO GILBERTO GOMES JUNIOR

ORIGIN LOADING ADDRESS

190 WESTERVELT AV.

CITY

PRAIEIRA

STATE

RS

DESTINATION

RUA VIGARA 3469 PORTO VELHO - R.O. BRASIL

DESCRIPTIVE SYMBOLS

BAW - BLACK & WHITE TV
C - COLOR TV
CP - CARRIER PACKED
PBO - PACKED BY OWNER
CD - CARRIER DISASSEMBLED

DSO - DISASSEMBLED BY OWNER
PB - PROFESSIONAL BOOKS
PE - PROFESSIONAL EQUIPMENT
PP - PROFESSIONAL PAPERS
MCU - MECHANICAL CONDITIONS UNKNOWN

BE - BENT
BR - BROKEN
BU - BURNED
CH - CHIPPED
CU - CONTENTS & CONDITION UNKNOWN

EXCEPTION SYMBOLS

D - DENTED
F - FADED
G - GOUNDED
L - LOOSE
M - MARRED
MI - MILDEW
MO - MOTHEATEN
P - PEELING
R - RUSTED
RU - RUSTED
SC - SCRATCHED

LOCATION SYMBOLS

1. ARM
2. BOTTOM
3. CORNER
4. FRONT
5. LEFT
6. LEGS
7. REAR
8. RIGHT
9. SIDE
10. TOP
11. VENEER
12. EDGE
13. CENTER
14. INSIDE
15. DRAWER
16. SEAT
17. DOOR
18. SHELF
19. HARDWARE

NOTE: THE OMISSION OF THESE SYMBOLS INDICATES GOOD CONDITION EXCEPT FOR NORMAL WEAR.

ITEM NO.	CR REF.	ARTICLES	PRICE
89	GMB	divisorio de madeira	
90	GMB	topete medio	
91	CR4B	03 cadeiras da mesa de jantar. Osmoforadas de madeira.	
92	GMB	armario para banheiro	
93	GMB	armario para banheiro	
94	CR4B	estímulo estufa. Luzes para jardim - cadeiras da mesa de jantar. Espetáculo usado.	
95	GMB	cadeira para refrigerador usado.	
96	GMB	elminasquiro usado.	
97	GMB	topete pequeno.	
98	GMB	armario de madeira pequeno.	
99	DISH4	divisorio de madeira. Móveis. Livros. panela.	
100	GMB	espelho pequeno. Divisorio de madeira	
101	GMB	luminaria de canto.	
102	LC	lustre de ferro. roupas. divisorio de madeira.	
103	GMB	comoda de madeira	
104	GMB	Novo com planta artificial.	
105	GMB	Modelo de vidro e vidro frigidaire usado.	
106	CR4B	divisorio. Osmoforadas das cadeiras de jardim	
107	DISH4	Osmoforadas das cadeiras de jardim	
108	GMB	Cadeiras para jardim	
109	GMB	partes das cadeiras de jardim	
110	GMB	Alca para jardim.	
111	GMB	Refe de ferro para varanda.	
112	GMB	tapete da laje	
113	GMB	laje para varanda	
114	GMB	luminaria de vidro.	
115	GMB	Guarda roupa de madeira	
116	GMB	partes do guarda roupas	
117	GMB	partes do guarda roupas	

"We have checked all the items listed and numbered 1 to _____ inclusive and acknowledge that this is a true and complete list of the goods tendered and of the state of the goods received."

HOUSEHOLD GOODS DESCRIPTIVE INVENTORY

1.888.590.3278

CONTRACTOR OR CARRIER

241551M

AGENT

AGENT
GILMAN GUNN

PAGE NO.

NO. OF PAGES

CARRIER'S REFERENCE NO.

CONTRACT OR GBL NO.	
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GOVT. SERVICE ORDER NO.

VAN NUMBER

OWNER'S GRADE OR RATING AND NAME

ANTONIO DOBERTO da Silva Lima

ORIGIN	LOADING ADDRESS	DATA
0000	0000	0000
0001	0001	0001
0002	0002	0002
0003	0003	0003
0004	0004	0004
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0065	0065	0065
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0067	0067	0067
0068	0068	0068
0069	0069	0069
006A	006A	006A
006B	006B	006B
006C	006C	006C
006D	0	

190 WESTERVELT AV

CITY

PLR/P/120

STATE

STATE
MS

DESTINATION

DESTINATION
Mila 3469 Porto Nuovo. Bo. Brazil

DESCRIPTIVE SYMBOLS

BW - BLACK & WHITE TV
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D - DENTED
F - FADED
G - GOUGED
L - LOOSE
M - MARRED
MI - MILDEW
MO - MOTHEATEN
P - PEELING
R - RUBBED
RU - RUSTED
SC - SCRATCHED

SH - SHORT
SO - SOILED
ST - STAINED
T - TORN
W - BADLY WORN
Z - CRACKED

LOCATION SYMBOLS

1 ARM	8 RIGHT	15 DRAWER
2 BOTTOM	9 SIDE	16 SEAT
3 CORNER	10 TOP	17 DOOR
4 FRONT	11 VENEER	18 SHELF
5 LEFT	12 EDGE	19 HARDWARE
6 LEGS	13 CENTER	
7 REAR	14 INSIDE	

NOTE: THE OMISSION OF THESE SYMBOLS INDICATES GOOD CONDITION EXCEPT FOR NORMAL WEAR.

[illegible]

Antonio Egidio Corbo.

"We have checked all the items listed and numbered 1 to _____ inclusive and acknowledge that this is a true and complete list of the goods tendered and of the state of the goods received."

STATEMENT OF DAMAGES CLAIMED

Please note: Plaintiff incurred certain expenses in Brazilian Real ("BRL") and certain expenses in U.S. Dollars ("USD"). The tables below reflect the expenses as they were incurred and in the currency in which they were incurred. At the end of each section, the BRL expenses will be converted into USD at the rate in effect on money.cnn.com as of March 29, 2017, and the total damages will be shown in USD. Plaintiff reserves the right to adjust the conversion rate of BRL to USD. Plaintiff also reserves the right to edit and amend this Statement of Damages Claimed.

COMPENSATORY DAMAGES

1. Special damages (economic)

	BRL	USD
a. Expenses incurred	BRL \$ 41,630.32	
b. Expenses incurred		USD \$ 19,440.00
c. Loss of earnings	BRL \$ 10,632.00	
d. Property damage		USD \$ 1,000.00
e. Legal fees paid to date		USD \$ 6,100.00
Subtotal	BRL \$ 52,262.32	USD \$ 26,540.00
Conversion Rate BRL to USD as of 3/29/2017 per money.cnn.com: 3.12. Brazilian Real \$ 52,262.32 converted into US Dollars:		USD \$ 16,750.74
TOTAL SPECIAL DAMAGES		USD \$ 43,290.74

2. General damages (non-economic)

	USD
a. Pain, suffering, inconvenience, etc	USD \$ 86,581.48

PUNITIVE DAMAGES

1. Complainant reserves the right to seek punitive damages. Amount to be determined.

INTEREST

1. Complainant reserves the right to seek interest as allowed by law. Amount to be determined.

COUNSEL FEES AND COST OF SUIT

1. Complainant reserves the right to seek reimbursement of all counsel fees and costs of suit as allowed by law, as set forth above and as incurred going forward. Amount to be determined.

BREAKDOWN OF EXPENSES

Plaintiff reserves the right to amend this Breakdown of Expenses.

Date	Description 1	Description 2	Brazilian REAL R\$	US DOLLARS \$
	Loss of Earnings (for time spent in Rio de Janeiro)	24 days of work lost. Rate of pay R\$ 8,860 reals/month (20 days) or R\$ 443 reals/day	10,632.00	
	Property Damage: Missing box of silverware and plates			300.00
	Property Damage: Missing box of clothing			200.00
	Property Damage: Missing laser printer for personal use			500.00
	Expense: Payment made to Fastway			17,320.00
4/20/2015	Expense: Multirio Oper Portuarias	Storage, pier and port services	9,925.84	
4/20/2015	Expense: Concorde Express do Brasil Transporte E Logistica	Shipment from Rio-de Janeiro to Porto Velho	17,000.00	
6/4/2015	Expense: Brazilian Professional Services	Translation Services		1,120.00
3/14/2015	Expense: Copies and extras		13.50	
4/18/2015	Expense: Copies and extras		55.07	
4/18/2015	Expense: Copies and extras		54.00	
3/28/2015	Expense: Copies and extras		12.00	
4/18/2015	Expense: Copies and extras		4.00	
12/24/2014	Expense: Copies and extras		57.70	
9/5/2014	Expense: Copies and extras		110.00	
3/2/2015	Expense: Copies and extras		20.70	
3/12/2015	Expense: Bar e Restaurante Boemios	Food while in Rio di Janeiro	14.43	

3/28/2015	Expense: Cafes Finos Ltda	Food while in Rio di Janeiro	12.00	
3/28/2015	Expense: Cafes Finos Ltda	Food while in Rio di Janeiro	7.50	
4/22/2015	Expense: Demoiselle Com. De Ret. B.E. Serv. Buffet Ltda.	Food while in Rio di Janeiro	34.30	
3/13/2015	Expense: Bar e Restaurante Boemios	Food while in Rio di Janeiro	16.03	
3/12/2015	Expense: Lojas Americanas	Food while in Rio di Janeiro	1.99	
3/14/2015	Expense: 365 Deli	Food while in Rio di Janeiro	13.50	
3/12/2015	Expense: Lojas Americanas	Food while in Rio di Janeiro	6.99	
3/13/2015	Expense: Lojas Americanas	Food while in Rio di Janeiro	1.99	
3/12/2015	Expense: Lojas Americanas	Food while in Rio di Janeiro	5.98	
4/20/2015	Expense: McDonald's	Food while in Rio di Janeiro	5.00	
3/22/2015	Expense: R&C Empreendiment Alimenticios Ltda.	Food while in Rio di Janeiro	16.00	
3/12/2015	Expense: Lanchonete Recanto dos Sabores Ltda.	Food while in Rio di Janeiro	7.80	
	Expense:	Food while in Rio di Janeiro	21.00	
4/15/2015	Expense: Drogaria Montana Lt.d	Food while in Rio di Janeiro	3.25	
3/23/2015	Expense: Cantina da Amizade	Food while in Rio di Janeiro	17.00	
4/22/2015	Expense: Cafes Finos Ltda.	Food while in Rio di Janeiro	16.00	
4/18/2015	Expense: McDonald's	Food while in Rio di Janeiro	27.00	
3/23/2015	Expense: Modernos Hoteis do Brasil Ltda.	Food while in Rio di Janeiro	55.90	
3/22/2015	Expense: Modernos Hoteis do Brasil Ltda.	Food while in Rio di Janeiro	48.90	
3/28/2015	Expense: R&C Empreendiment Alimenticios Ltda.	Food while in Rio di Janeiro	13.50	
3/11/2015	Expense: JVM 53 Bar e Lanchonete Ltda.	Food while in Rio di Janeiro	26.00	

3/11/2015	Expense: Florida Bar Ltda.	Food while in Rio di Janeiro	31.00	
4/22/2015	Expense: 365 Deli	Food while in Rio di Janeiro	8.00	
4/22/2015	Expense: 365 Deli	Food while in Rio di Janeiro	31.50	
3/9/2015	Expense: Villa Reggia Hotel	Hotel and Food; March 8-March 10, 2015 (2 nights)	412.00	
3/13/2015	Expense: Villa Reggia Hotel	Hotel and Food; March 10-March 13, 2015 (3 nights)	605.94	
3/14/2015	Expense: Villa Reggia Hotel	Hotel and Food; March 13-March 14, 2015 (1 night)	250.99	
4/9/2015	Expense: Hotel Sao Francisco	Hotel and Food; April 12-April 15, 2015 (3 nights)	801.50	
3/28/2015	Expense: Hotel Sao Francisco	Food, March 28, 2015	247.30	
3/28/2015	Expense: Hotel Sao Francisco	Hotel, March 28, 2015 (1 night)	208.95	
3/24/2015	Expense: Hotel Sao Francisco	Food, March 22-March 23, 2015	204.80	
3/24/2015	Expense: Hotel Sao Francisco	Hotel; March 22-March 23, 2015 (2 nights)	652.06	
3/24/2015	Expense: Hotel Sao Francisco	Food, March 24, 2015	104.80	
3/27/2015	Expense: Hotel Sao Francisco	Hotel; March 24-March 26, 2015 (3 nights)	614.40	
4/15/2015	Expense: Hotel Sao Francisco	Hotel April 12-April 15, 2015 (3 nights)	841.57	
4/15/2015	Expense: Hotel Sao Francisco	Food April 12-April 14	235.60	
4/16/2015	Expense: Hotel Sao Francisco	Food April 16, 2015	129.30	
4/16/2015	Expense: Hotel Sao Francisco	Hotel April 15-16, 2015 (1 night)	326.03	
4/17/2015	Expense: Hotel Sao Francisco	Food April 17, 2015	182.30	
4/17/2015	Expense: Hotel Sao Francisco	Hotel April 16-17, 2015 (1 night)	316.05	
4/18/2015	Expense: Hotel Sao Francisco	Food, April 17, 2015	49.40	
4/22/2015	Expense: Hotel Sao Francisco	Hotel, April 17-18, 2015 (1 night)	316.05	
4/22/2015	Expense: Hotel Sao Francisco	Food, April 17-April 22, 2015	314.50	
4/22/2015	Expense: Hotel Sao Francisco	Hotel, April 21-22, 2015 (1 night)	316.05	

4/22/2015	Expense: Hotel Sao Francisco	Hotel, April 18-22, 2015 (4 nights)	1050.00	
3/8/2015	Expense: Travel to Rio de Janeiro	(Porto Velho to Cuiabá R\$213; then Cuiabá to Rio de Janeiro R\$458)	671.00	
3/14/2015	Expense: Travel home from Rio de Janeiro	(Rio de Janeiro to São Paulo R\$673.27; then São Paulo to Porto Velho R\$206.25)	879.52	
3/22/2015	Expense: Travel to Rio de Janeiro	(Porto Velho to Cuiabá R\$422; then Cuiabá to Rio de Janeiro R\$458)	880.00	
3/28/2015	Expense: Travel home from Rio de Janeiro	(Rio de Janeiro to Cuiabá R\$649.16; then Cuiabá to Porto Velho R\$317.66)	966.82	
4/12/2015	Expense: Travel to Rio de Janeiro	(Porto Velho to Cuiabá R\$473; then Cuiabá to Rio de Janeiro R\$525.25)	998.25	
4/22/2015	Expense: Travel home from Rio de Janeiro	(Rio de Janeiro to São Paulo to Cuiabá R\$473.27; then Cuiabá to Porto Velho R\$347.25)	820.52	
4/13/2015	Expense: Taxi service while in Rio de Janeiro		26.70	
3/8/2015	Expense: Taxi service while in Rio de Janeiro		95.00	
3/22/2015	Expense: Taxi service while in Rio de Janeiro		95.00	
4/13/2015	Expense: Taxi service while in Rio de Janeiro		20.00	
4/13/2015	Expense: Taxi service while in Rio de Janeiro		12.00	
4/14/2015	Expense: Taxi service while in Rio de Janeiro		20.00	
[No date]	Expense: Taxi service while in Rio de Janeiro		18.55	
4/15/2015	Expense: Taxi service while in Rio de Janeiro		28.00	
4/22/2015	Expense: Taxi service while in Rio de Janeiro		60.00	
3/14/2015	Expense: Taxi service while in Rio de Janeiro		52.00	
3/27/2015	Expense: Taxi service while in Rio de Janeiro		30.00	
3/24/2015	Expense: Taxi service while in Rio de Janeiro		30.00	

3/28/2015	Expense: Taxi service while in Rio de Janeiro		52.00	
	Other: Legal fees to Date			
	TOTAL		R\$ 52,262.32	US\$ 19,440.00

STATEMENT REGARDING ADR PROCEDURES

The parties have not engaged in mediation or consulted the FMC's Office of Consumer Affairs and Dispute Resolution. Alternative dispute resolution procedures were not used prior to filing this Complaint. Complainant has not consulted with the Commission Dispute Resolution Specialist about utilizing alternative dispute resolution.

REQUEST FOR HEARING

Complainant requests an oral hearing on this matter, and further requests that the hearing be held in New York.

DESIGNATED TRIAL ATTORNEY PURSUANT TO SECTION 502.23

Complainant hereby designates Suzanne Iazzetta, Esq., of counsel to Karina Pia Lucid, Esq., LLC, as designated trial counsel. Suzanne Iazzetta, Esq. is an attorney admitted to practice and in good standing before the courts of the States of New York, New Jersey, and North Carolina, and before the Federal courts of the Southern District of New York the District of New Jersey, the Eastern District of North Carolina, and the Western District of North Carolina.



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klucid@karinalucidlaw.com
suzanneiazzetta@gmail.com

Dated: March 20, 2017